Owned Fund criteria within the period of validity of the in-principle approval for grant of certification of registration given by the Reserve Bank.

C. Process of registration

12. The process of registration as an NBFC-AA is as under:

(1) Every company seeking registration as an NBFC-AA shall make an application for registration on the PRAVAAH portal to the Department of Regulation, Mumbai of the Reserve Bank, in the form specified by the Reserve Bank for the purpose.

(2) The Reserve Bank for the purpose of considering the application for registration shall require to be satisfied that the following conditions are fulfilled:-

(i) The company has the necessary resources and wherewithal to offer such services to customers.

(ii) The company has the adequate capital structure to undertake the business of an account aggregator.

(iii) The promoters of the company are fit and proper.

(iv) The general character of the management or proposed management of the company are not prejudicial to the public interest.

(v) The company has a plan for a robust Information Technology system.

(vi) The company shall not have a leverage ratio of more than seven.

(vii) That the public interest shall be served by the grant of certificate of registration to the Account Aggregator to commence or to carry on the business in India.

(viii) Any other condition that may be specified by the Reserve Bank from time to time, the fulfilment of which in the opinion of the Reserve Bank shall be necessary to ensure that the commencement of or carrying on the business in India shall not be prejudicial to the public interest.

(3) The Reserve Bank may, after being satisfied that the conditions specified under sub-paragraph (2) are fulfilled, grant in-principle approval for registering as an NBFC-AA subject to such conditions as it may consider fit to impose.

(4) The validity of the in-principle approval issued by the Reserve Bank will be twelve months from the date of granting such in-principle approval.

(5) Within the period of twelve months, the company shall put in place the technology platform, enter into all other legal documentations required to be ready for operations and report position of compliance with the terms of grant of in-principle approval to the Reserve Bank. The Reserve Bank may, after being satisfied that the company is ready to commence operations and in compliance with the registration requirements, grant it a Certificate of Registration as an NBFC - AA subject to such conditions as it may consider fit to impose.

(6) The Reserve Bank may cancel the certificate of registration granted to an NBFC-AA , if such company -

(i) ceases to carry on the business of an Account Aggregator in India; or

(ii) has failed to comply with any condition subject to which the certificate of registration has been issued to it; or

(iii) it comes to the notice of the Reserve Bank that the NBFC-AA is no longer eligible to hold the certificate of registration; or

(iv) at any time fails to fulfill any of the conditions referred to in sub-paragraphs (2) and (5); or

(v) fails to -

(a) comply with any direction issued by the Reserve Bank; or

(b) maintain accounts, publish and disclose its financial position in accordance with the requirements of any law or any direction or order issued by the Reserve Bank; or

(c) submit or offer for inspection its books of account or other relevant documents when so demanded by the Reserve Bank.

D. Investment from FATF non-compliant jurisdictions

13. The companies seeking Certification of Registration as an NBFC-AA shall refer to the instructions as prescribed in paragraphs 47 and 48 of Reserve Bank of India (Non-Banking Financial Companies – Registration, Exemptions and Framework for Scale Based Regulation) Directions, 2025.

Chapter-III – Scope of Activities

A. Duties and Responsibilities of an NBFC-AA

14. The duties and responsibilities of an NBFC-AA are as under:

(1) NBFC-AA shall provide services to a customer based on the customer's explicit consent.

(2) NBFC-AA shall ensure that the providing of services to a customer shall be backed by appropriate agreements/ authorisations between the NBFC-AA, the customer and the Financial Information Providers.

(3) NBFC-AA shall not support transactions by customers.

(4) NBFC-AA shall ensure appropriate mechanisms for proper customer identification.

(5) NBFC-AA shall share information as referred to under paragraph 8(4) only with the customer to whom it relates or any other financial information user as authorised by the customer in accordance with the terms of the consent provided by the customer.

(6) NBFC-AA shall not undertake any other business other than the business of account aggregator. Deployment of investible surplus by an NBFC-AA in instruments, not for trading, shall however be permitted.

(7) No financial information of the customer accessed by the NBFC-AA from the financial information providers shall reside with the NBFC-AA.

(8) NBFC-AA shall not use the services of a third party service provider for undertaking the business of account aggregation.

(9) User authentication credentials of customers relating to accounts with various Financial Information Providers shall not be accessed by the NBFC-AA.

(10) NBFC-AA shall have a Citizen's Charter that explicitly guarantees protection of the rights of a customer. The NBFC-AA shall not part with any information that it may come to acquire from/ on behalf of a customer without the explicit consent of the customer.

(11) In the event of any difference in position of financial information in the statement generated by/from the NBFC-AA and the books of the Financial Information Provider, the position as reflected in the records of the Financial Information Provider shall be considered as correct.

B. Consent Architecture

15. No financial information of the customer shall be retrieved, shared or transferred by the NBFC-AA without the explicit consent of the customer.

16. An NBFC-AA shall perform the function of obtaining, submitting and managing the customer's consent in accordance with these directions.

17. The consent of the customer obtained by the NBFC-AA shall be a standardised consent artefact which shall contain the following details, namely: —

(1) identity of the customer and optional contact information;

(2) the nature of the financial information requested;

(3) purpose of collecting such information;

(4) the identity of the recipients of the information, if any;

(5) URL or other address to which notification needs to be sent every time the consent artefact is used to access information

(6) Consent creation date, expiry date, identity and signature/ digital signature of the NBFC-AA; and

(7) any other attribute as may be prescribed by the Reserve Bank.

18. The consent artefact can also be obtained in electronic form.

19. At the time of obtaining consent, the NBFC-AA shall inform the customer of all necessary attributes to be contained in the consent artefact as per paragraph 17 above and the right of the customer to file complaints with relevant authorities in case of non-redressal of grievances.

20. NBFC-AA shall also provide its customers a functionality to revoke consent to obtain information that is rendered accessible by a consent artefact, including the

ability to revoke consent to obtain parts of such information. Upon revocation, a fresh consent artefact shall be shared with the Financial Information provider.

21. An electronic consent artefact shall be capable of being logged, audited and verified.

C. Sharing of financial information by Financial Information Providers upon valid consent artefact being presented

22. Financial Information Providers shall share financial information of a customer with an NBFC-AA on being presented a valid consent artefact by an NBFC-AA in accordance with paragraphs 15 to 21.

23. Upon being presented the consent artefact, the Financial Information Provider shall verify:

(1) validity of consent

(2) specified dates and usage; and

(3) the credentials of the NBFC-AA
through appropriate means.

24. Upon due verification, the Financial Information Providers shall digitally sign the financial information and securely transmit the same to the NBFC-AA in accordance with the terms contained in the consent artefact.

25. All responses of the Financial Information Provider shall be in real time.

26. To enable these data flows, the Financial Information Providers shall:

(1) implement interfaces that will allow an NBFC-AA to submit consent artefacts, and authenticate each other, and would enable secure flow of financial information to the NBFC-AA;

(2) adopt means to verify the consent including digital signatures, if any, contained in the consent artefact;

(3) implement means to digitally sign the financial information that is shared by them about the customers;

(4) maintain a log of all information sharing requests and the actions performed by them pursuant to such requests and submit the same to the NBFC-AA.

D. Use of information by NBFC-AA and Financial Information User

27. Where financial information has been provided by a Financial Information Provider to an NBFC-AA for transferring to a Financial Information User with the customer's explicit consent, the NBFC-AA shall:

(1) verify the identity of the Financial Information User; and, if verified,

(2) securely transfer the customer's information to the intended recipient in accordance with the terms of the consent artefact.

28. Where financial information has been provided by a Financial Information Provider to an NBFC-AA for transferring to the customer or to a Financial Information User, it shall not be used or disclosed by an NBFC-AA or the Financial Information User except as may be specified in the consent artefact.

E. Joining the Account Aggregator Ecosystem as Financial Information User

29. With a view to ensure efficient and optimum utilisation of the Account Aggregator ecosystem, regulated entities of the Reserve Bank joining the Account Aggregator ecosystem as Financial Information User shall necessarily join as Financial Information Provider also, if they hold the specified financial information and fall under the definition of Financial Information Provider.

F. Data Security

30. NBFC-AA shall adhere to the following:

(1) Business of an Account Aggregator will be entirely Information Technology (IT) driven. NBFC-AA shall adopt required IT framework and interfaces to ensure secure data flows from the Financial Information Providers to its own systems and onwards to the Financial Information Users.

(2) NBFC-AA shall not request or store customer credentials (like passwords, PINs, private keys) which may be used for authenticating customers to the Financial Information providers. Access by an NBFC-AA to customer's information shall only be based on consent-based authorisation.

(3) The technology should also be scalable to cover any other financial information or Financial Information Provider as may be specified by the Reserve Bank in future.

(4) There shall be adequate safeguards built in its IT systems to ensure that it is protected against unauthorised access, alteration, destruction, disclosure or dissemination of records and data.

(5) Appropriate measures for Disaster Risk Management and Business Continuity shall be in place.

(6) Information System Audit of the internal systems and processes shall be in place and shall be conducted at least once in two years by CISA certified external auditors. Report of the external auditor shall be submitted to the Regional Office of the Department of Supervision of the Reserve Bank, under whose jurisdiction the Registered Office of the NBFC-AA is located, within one month of submission of the report by the external auditor.

G. Guidance Note on Operational Risk Management and Operational Resilience

31. NBFC-AA may make use of the 'Guidance Note on Operational Risk Management and Operational Resilience', as amended from time to time.

H. Technical Specification for all participants of the Account Aggregator ecosystem

32. The NBFC-AA consolidates financial information of a customer held with different financial entities under different financial sector regulators. In order to ensure that movement of data among different financial entities, spread across financial sector regulators adopting different IT systems and interfaces is secured, duly authorised, smooth and seamless, a set of core technical specifications for the participants of the AA ecosystem have been framed by Reserve Bank Information Technology Private Limited (ReBIT), and published the same on its website (www.rebit.org.in).

33. All regulated entities of the Reserve Bank, acting either as NBFC-AA or Financial Information Providers or Financial Information Users are expected to adopt the technical specifications published by ReBIT, as updated from time to time.